JJJ-C-271F
October 8, 1975
SUPERSEDING
Fed. Spec. JJJ-C-271e
September 25, 1967

FEDERAL SPECIFICATION

CHOCOLATE, COOKING, AND CHOCOLATE CHIPS

This specification was approved by the Commissioner, Federal Supply Service, General Services Administration, for the use of all Federal agencies.

1. SCOPE AND CLASSIFICATION

1.1 Scope. This specification covers unsweetened cooking chocolate, chocolate chips and chocolate-flavored baking chips for use by agenices of the Federal Government.

1.2 Types. The chocolate covered by this specification shall be of the following types, as specified (see 6.1):

Type I - Chocolate, cooking, unsweetened
Type II - Chocolate chips
Type III - Chocolate-flavored baking chips

2. APPLICABLE DOCUMENTS

2.1 The following documents, of the issue in effect on date of invitation for bids or request for proposal, form a part of this specification to the extent specified herein:

Federal Specification:

PPP-B-636 - Boxes, Shipping, Fiberboard

Federal Standard:

FED-STD-123 - Marking for Domestic Shipment (Civil Agencies)

FSC 8925

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(Activities outside the Federal Government may obtain copies of Federal Specifications, Standards, and Handbooks as outlined under General Information in the Index of Federal Specifications and Standards and at the prices indicated in the Index. The Index, which includes cumulative monthly supplements as issued, is for sale on a subscription basis by the Superintendent of Documents, US Government Printing Office, Washington, DC 20402.

(Single copies of this specification and other Federal specifications required by activities outside the Federal Government for bidding purposes are available without charge from Business Service Centers, at the General Services Administrati Regional Offices in Boston, New York, Washington, DC, Atlanta, Chicago, Kansas City, MO, Fort Worth, Denver, San Francisco, Los Angeles, and Seattle, WA.

(Federal Government activities may obtain copies of Federal Specifications, Standards, and Handbooks and the Index of Federal Specifications and Standards from established distribution points in their agencies.)

Military Specifications:

MIL-L-10547	-	Liner, Case and Sheet, Overwrap; Water-Vaporproof or Waterproof, Flexible.
MIL-L-35078	-	Loads, Unit: Preparation of Nonperishable Subsistence

Military Standards:

MIL-STD-105	-	Sampling Procedures and Tables for Inspection by Attributes
MIL-STD-129	-	Marking for Shipment and Storage
MIL-STD-668	-	Sanitary Standards for Food Plants

(Copies of Military Specifications and Standards required by suppliers in connection with specific procurement functions should be obtained from the procuring activity or as directed by the contracting officer.)

LAWS AND REGULATIONS

US Department of Health, Education and Welfare

Federal Food, Drug and Cosmetic Act and Regulations Promulgated Thereunder

(Application for copies should be addressed to the Superintendent of Documents, US Government Printing Office, Washington, DC 20402.)

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2.2 Other publications. The following documents form a part of this specification to the extent specified herein. Unless a specific issue is identified, the issue in effect on date of invitation for bids or request for proposal shall apply:

Association of Official Analytical Chemists

Official Methods of Analysis of the Association of Official Analytical Chemists

(Application for copies should be addressed to the Association of Official Analytical Chemists, PO Box 540, Benjamin Franklin Station, Washington, DC 20044.)

Uniform Classification Committee, Agent

Uniform Freight Classification

(Application for copies should be addressed to the Uniform Classification Committee, Room 1106, 222 South Riverside Plaza, Chicago, IL 60606.)

National Motor Freight Traffic Association, Inc., Agent

National Motor Freight Classification

(Application for copies should be addressed to the American Trucking Associations, Inc., Tariff Order Section, 1616 P Street, N.W., Washington, DC 20036.)

3. REQUIREMENTS

3.1 Cacao nibs. The cacao nibs shall be mature, clean, sound, wholesome, domestically roasted cacao beans which have been properly dried and cured and shall conform to the Definitions and Standards for Cocoa Products under the Federal Food, Drug and Cosmetic Act.

3.2 Finished product.

3.2.1 Type I, chocolate, cooking, unsweetened. The unsweetened cooking chocolate shall meet the requirements for chocolate liquor in the Definitions and Standards for Cocoa Products under the Federal Food, Drug and Cosmetic Act. It shall be the solid or semiplastic natural food obtained by finely grinding domestically roasted cacao nibs. Chocolate liquor made by combining cocoa and cocoa butter will not be acceptable.

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3.2.2 Type II, chocolate chips. Chocolate chips shall be made from semisweet chocolate which meets the requirements in the Definitions and Standards for Cocoa Products under the Federal Food, Drug and Cosmetic Act. The type II product shall be in the form of chips or drops. The fat content shall be not less than 28.0 percent. The count per pound shall be not less than 800 or more than 1100.

3.2.3 Type III, chocolate-flavored baking chips. Chocolate-flavored baking chips shall contain sugar, hydrogenated vegetable oil, cocoa (processed with alkali) an emulsifier and flavor. The type III product shall be in the form of chips or drops. The fat content shall be not less than 25 or more than 28 percent. The count per pound shall be not less than 800 or more than 1100.

3.3 Federal Food, Drug and Cosmetic Act. All deliveries shall conform in every respect to the provisions of the Federal Food, Drug and Cosmetic Act and regulations promulgated thereunder.

3.4 Workmanship. The product shall be prepared in accordance with part 128 of the Code of Federal Regulations, Title 21, Human Foods; Current Good Manufacturing Practices (Sanitation) in manufacturing, processing, packing or holding. In addition, for Military agencies, the product shall be processed in establishments meeting the requirements of MIL-STD-668.

4. QUALITY ASSURANCE PROVISIONS

4.1 Responsibility for inspection. Unless otherwise specified in the contract or purchase order, the supplier is responsible for the performance of all inspection requirements as specified herein. Except as otherwise specified in the contract or order, the supplier may use his own or any other facilities suitable for the performance of the inspection requirements specified herein, unless disapproved by the Government. The Government reserves the right to perform any of the inspections set forth in the specification where such inspections are deemed necessary to assure supplies and services conform to prescribed requirements.

4.2 Pre-acceptance inspection (plant sanitation inspection).

4.2.1 For civil agencies. When specified (see 6.1), inspection of plants producing the product will be conducted upon request of the contracting officer to the appropriate Government inspection agency. Award of contracts will be limited to establishments known to maintain proper sanitary conditions or which have received prior sanitary approval recommended by the inspection agency.

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4.2.2 For military agencies. The product shall be rejected if produced in plants not meeting the requirements of 3.4.

4.3 Acceptance inspection.

4.3.1 Sampling for inspection. Sampling for inspection shall be performed in accordance with MIL-STD-105, except where otherwise indicated hereinafter.

4.3.2 Component and material inspection. In accordance with 4.1, components and materials shall be inspected and tested in accordance with all the requirements of referenced specifications, drawings, and standards unless otherwise excluded, amended, modified, or qualified in this specification, or applicable purchase document.

4.3.3 Examination of end item. Examination shall be in accordance with tables II through VI and 4.3.3.1 through 4.3.3.3. The sampling plans for the aforementioned tables shall be in accordance with table I. The acceptable quality levels (AQL's) shall be expressed in defects per hundreds for tables II, V, and VI and as percent defective for tables III and IV.

TABLE I. Sampling plans

Table	Sample unit	Lot size expressed in	Inspection level	AQLs	
				Major	Minor
II	Primary container	Primary containers	I	1.5	6.5
III	Primary container	Primary containers	S-3	-	2.5
IV	One ounce from a primary container	Primary containers	S-2	1.5	-
V	Primary container	Primary containers	S-2	1.0	6.5
VI	Intermediate container	Intermediate containers	S-3	1.5	6.5

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TABLE II. Examination of primary container

Category		Defect
Major	Minor	
151		Tear or hole.
152		Not packaged in a greaseproof material.
153		Product not completely wrapped.
154		Not clean.
155		Objectionable odor.
156		Nomenclature missing, incorrect, or illegible.
	201	Labeling information other than nomenclature missing, incorrect, or illegible.

TABLE III. Examination for net weight 1/

Category	Defect
Minor	
201	Net weight more than 5 percent under specified weight (for primary containers from 6-ounce size and up to and including 12-ounce size). 2/
202	Net weight more than 1 percent under specified weight (for primary containers weighing 10 pounds). 3/

1/ Lot size shall be rejected if sample data indicate a lot average net weight less than specified net weight.

2/ Report net weights to the nearest gram.

3/ Report net weights to the nearest 1/2 ounce.

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TABLE IV. Examination for count (type II and III) 1/

Category	Defect
Major	
151	Less than 800 or more than 1100 chips or drops per pound.

1/ The count per pound shall be calculated from the count per ounce.

TABLE V. Examination for product characteristics 1/

Category		Defect
Major	Minor	
151		Other than good typical chocolate color.
	201	Not smooth texture.
152		Crushed.
153		Objectionable odor.
154		Objectionable taste.
	202	Evidence of fat bloom, i.e., gray color.

1/ Presence of foreign material (e.g., hair, dirt, insect, insect parts, paper, metal particles, glass, or other extraneous materials) shall be cause for rejection of the lot.

TABLE VI. Examination of intermediate container (see 5.2)

Category		Defect
Major	Minor	
	201	Not type of container specified.
	202	Not securely closed.
151		Closed by means of staples.

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4.3.3.1 Examination of waterproof case liners. The filled and closed case liner shall be examined in accordance with the examination criteria contained in the appendix to MIL-L-10547.

4.3.3.2 Examination of shipping containers. The filled and closed shipping containers shall be examined and tested in accordance with the appendix to PPP-B-636. In addition, the following defects shall be included in the examination: Major - markings, missing, incorrect, or illegible; Minor - Marked net weight exceeds 40 pounds; Major - Protective pads or tape (when required) missing, not as specified or not completely covering metal stitches. For level C pack, as specified in 5.2.3.1, only the aforementioned defects applicable to marking shall apply.

4.3.3.3 Examination of unit loads (for Military agencies). Unit loads shall be examined in accordance with the criteria of MIL-L-35078 and the applicable specification sheet for the type and class of load specified (see 6.1).

4.4 Testing of finished product. The finished product shall be tested for fat content in accordance with 4.5. The sample for testing shall be a 1-pound composite of product derived from the number of primary containers indicated by inspection level S-2. Lot size shall be expressed in primary containers. Test results shall be reported to the nearest decimal or unit as specified for the pertinent requirement. Nonconformance with requirements shall be cause for rejection of the lot.

4.5 Test methods. Test procedures which differ from those specified herein, unless otherwise excepted, may be used by the supplier if they provide a quality assurance equivalent to that specified. If the contracting officer determines that such procedures and controls do not provide, as a minimum, such quality assurance, the supplier will use the procedures set forth herein. In case of dispute as to test results, the procedures specified herein will govern.

4.5.1 Chemical analyses. Chemical analyses, when required, shall be made in accordance with Official Methods of Analysis of the Association of Official Analytical Chemists, Chapter: Cacao Beans and Its Products. The fat test shall be made according to Section, Fat; Method, Quantitative Determination.

5. PREPARATION FOR DELIVERY

5.1 Packaging. The cooking chocolate or chocolate chips shall be packaged level A or C, as specified (see 6.1).

5.1.1 Level A. Eight ounces or ten pounds of the type I product, or 6 or 12 ounces as specified (see 6.1), of the type II or III product, shall be packaged in a commercial package which shall have a greaseproof material completely enclosing the product.

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5.1.2 Level C. The chocolate shall be packaged to afford adequate protection against deterioration and damage during shipment from the supplier to the initial destination. The supplier may use his standard practice when it meets this requirement.

5.2 Packing. Not more than 40 pounds of the type of chocolate specified in 6, 8, or 12 ounce packages, or a total of five 10-pound packages, packaged in accordance with 5.1, shall be packed in a snug fitting shipping container in accordance with level A, B, or C, as specified (see 6.1).

5.2.1 Level A. The chocolate shall be packed in a snug fitting, nontest, corrugated fiberboard box closed with other than metal staples. The nontest box shall be placed in a waterproof case liner, fabricated and sealed in accordance with MIL-L-10547 for subsistence items. The box and liner shall be packed in a fiberboard box, constructed, closed, and reinforced in accordance with style RSC, V2s, of PPP-B-636. If the bottom flaps are closed by stitching, the liner shall be protected from the stitches by placing a paperboard pad between the stitches and the liner. The liner shall be protected from stitches in the manufacturer's joint by placing a strip of pressure sensitive tape over the stitches.

5.2.2 Level B. The nontest box and waterproof case liner specified in 5.2.1 shall be packed in a fiberboard box, constructed, closed and reinforced in accordance with style RSC, V3c, V3s, or V4s, of PPP-B-636. The liner shall be protected from stitches as specified in 5.2.1.

5.2.2.1 When specified (6.1 and 6.3), packing specified in 5.2.2 shall be reinforced with nonmetallic strapping or pressure-sensitive adhesive, filament-reinforced type in accordance with the appendix of PPP-B-636.

5.2.3 Level C. The shipping container shall be a fiberboard box constructed and closed in accordance with style RSC, type CF or SF, class domestic, method II closure of PPP-B-636.

5.2.3.1 When specified (see 6.1 and 6.4), the shipping container shall be packed to provide carrier acceptance and safe delivery at destination. The shipping container shall be in accordance with the Uniform Freight Classification or National Motor Freight Classification, as applicable.

5.3 Unit loads. When specified (see 6.1), the product, packed as specified in 5.2, shall be arranged in unit loads in accordance with MIL-L-35078 for the type and class of load specified.

5.4 Labeling and marking.

5.4.1 Military agencies.

5.4.1.1 Unit containers. Labeling of the unit containers shall comply with the Federal Food, Drug, and Cosmetic Act and regulations promulgated thereunder.

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5.4.1.2 Shipping containers. Shipping containers shall be marked in accordance with MIL-STD-129.

5.4.1.3 Unit loads. Unit loads shall be marked in accordance with MIL-L-350

5.4.2 Civil agencies.

5.4.2.1 Unit containers. Labeling of the unit containers shall comply with the Federal Food, Drug, and Cosmetic Act and regulations promulgated thereunder The 10-pound unit package shall be marked with the National stock number, nomenclature, and quantity.

5.4.2.2 Shipping containers. Shipping containers shall be marked in accorda with the requirements of FED-STD-123 and such other information as specified by individual agencies.

6. NOTES

6.1 Ordering data. Purchasers should select the preferred options permitted herein and include the following information in procurement documents.

(a) Title, number, and date of this specification.
(b) Type required (see 1.2.1).
(c) When pre-acceptance inspection is required by civil agencies (see 4
(d) Quantity per container required (see 5.1).
(e) Levels of packaging and packing required (see 5.1 and 5.2).
(f) When packing specified in 5.2.2.1 or 5.2.3.1 is required.
(g) Type and class of unit load required when unit loading is specified (see 5.3).

6.2 Based on the conditions known or expected to be encountered during shipment, handling, and storage, the contracting officer should select the appropriate level of pack in accordance with the criteria established in AR700-NAVSUPINST 4030.28/AFR 71-6/MCO 4030.14D/DSAR 4145.7.

6.3 Packing specified in 5.2.2.1 is intended for transfer at sea operations specific overseas operations.

6.4 Packing specified in 5.2.3.1 is intended for direct shipment from the supplier to the first consuming activity within CONUS.

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6.5 Destination inspection (for Civil agencies only). When the finished product has been inspected and passed at point other than destination, the contract should require that the product be inspected at destination for condition and quantity only.

Custodians:

Army - GL
Navy - SA
Air Force - 45

Review activities:

Army - MD
Navy - MC, MS
DP - SS

Preparing activity:

Army - GL

Civil Agency Coordinating Activities:

GSA-FSS
HEW-FDA, NIH
VA-DMS

Project No. 8925-0040

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